SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA

Department 16

Honorable Vincent I. Parrett, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2270

June 12, 2026

9:00 and 9:01 A.M.

Unauthorized Recording of Court Proceedings will be Punished

ORAL ARGUMENT

If you are contesting the tentative ruling then by 4 PM today you must notify:

(1) The Court by calling **(408) 808-6856**, and

(2) The other side by phone or email that you will appear at the hearing to contest the tentative.

If you fail to notify the court and opposing side by 4 PM then no oral argument will be heard and the tentative ruling becomes the final ruling. (C.R.C. 3.1308(a)(1) & Local Rule 8.E.)

APPEARANCES

The Court encourages in-person appearances for all matters.

The Court discourages remote appearances.

The Court forbids phone-only appearances.

If, despite the above clear guidance, you still elect to appear remotely in Department 16 then you must appear by video using our Court's Unicorn Digital Courtroom ("UDC") system. If for whatever reason you do not like using UDC, *then come to D16 in person.*

To use UDC, click or copy and paste this link into your internet browser & scroll to Department 16: https://www.scscourt.org/general_info/ra_teams/video_hearings_teams.shtml When using UDC you must *separately register for each case* in which you appear remotely. If you find UDC too cumbersome, *then come to D16 in person.*

Proposed Orders filed by counsel after the hearing must include the Judicial Council Form EFS-020 Proposed Order Cover Sheet.

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:01 1			
9:01 2			
9:01 3			
9:01 4			
9:01 5			
9:00 1	16CV293258	*Tom Lopes Distributing, Inc. d/b/a Western States Oil Company* *v.* *Shamrock Tank Lines, Inc., et al.*	**Order on Plaintiff's Motion to Amend Assignment Order and Turnover Order, for Sanctions, and for Award of Post-Judgment Attorneys' Fees and Costs** *See* Line 1 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal order.
9:00 2	24CV450398	*Jinsong Hu* *v.* *Fidelity National Title Company*	**Order on Plaintiff's Motion For Relief from Order under Code of Civil Procedure Section 473 and for Leave to Amend Complaint** *See* Line 2 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal order. Defendant Fidelity National Title Company as the prevailing party in this civil action is **ORDERED** to prepare and file a **proposed Judgment** in favor of Defendant and against Plaintiff within 20 days of today. **SO ORDERED.**

9:00 3	25CV459301	*TD Bank USA, N.A., as Successor in Interest to Target National Bank* *v.* *Serena Salazar Marquez, et al.*	**Order on Plaintiff's Motion to deem the truth of all matters specified in Requests for Admissions, Set One, to be admitted by Defendant** *See* Line 3 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal order.
9:00 4	25CV467856	*Steven Rocheville* *v.* *Neely Segerstrom*	**Order on Defendant's Demurrer to Plaintiff's Complaint** As Plaintiff under Code of Civil Procedure Section 472(a) timely filed a First Amended Complaint on June 1, 2026, Defendant's Demurrer to the original Complaint is now moot and **OFF CALENDAR**. Defendant is free to answer, demur, or otherwise respond to the First Amended Complaint within the time permitted by the Code of Civil Procedure. *See* C.C.P. § 472 (a) ("time for responding to an amended pleading shall be computed from the date of service of the amended pleading"). **SO ORDERED.**

9:00 5	25CV468257	*Argent Investments LLC* *v.* *Ye Rang Choi, et al.,* *And Related Cross-Action*	**Order Continuing Cross-Defendants' Demurrer to First-Amended Cross-Complaint** Cross-Defendants Argent Investments LLC and Stanley Woo filed a Demurrer to the First-Amended Cross-Complaint ("FACC"), noticed for hearing on June 12, 2026, and filed a Motion to Strike portions of the FACC, noticed for hearing on June 24, 2026. But California Rule of Court 3.1322(b) *requires* this Motion to Strike to be noticed for hearing and heard at the same date and time as this Demurrer. Accordingly, the Court *sua sponte* **ORDERS that this Demurrer is CONTINUED for hearing to June 24, 2026 at 9:00 AM in Department 16**, where it will be heard at the same date and time as the Motion to Strike. **SO ORDERED.**
9:00 6	25CV471230	*Andrew Perez* *v.* *Accenture LLP, et al.*	**Order on Defendant Accenture LLP's Motion to Compel Arbitration and Stay Civil Action** *See* Line 6 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal order.
9:00 7	25CV473371	*Calisha Bichko* *v.* *Vic Web Radio LLC d/b/a Vic's Media Group, et al.*	**Order on Plaintiff's Motion for Summary Judgment or, in the alternative, for Summary Adjudication** *See* Line 7 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal order.

9:00 8			
9:00 9			
9:00 10			
9:00 11			
9:00 12			
9:00 13			
9:00 14			
9:00 15			

Line 1

Case Name: *Tom Lopes Distributing, Inc. d/b/a Western States Oil Company*
v.
et al.

Case No.: 16CV293258

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff and Judgment Creditor Tom Lopes Distributing, Inc. d/b/a Western States Oil Company ("Western") now moves for an Order:

(1) To amend the Assignment and Turnover Order to add Hovanes Nadjarian a/k/a MLN Tanklines, Inc., and MLN Tanklines, Inc.;

(2) For Sanctions against HOVANES NADJARIAN for "disobey[ing] the Court's Order Granting Motion Compelling Third Party MLN Tanklines, Inc. to Obey Subpoena for Business Records of Judgment Debtor Hovanes Nadjarian [of] June 22, 2025"; and

(3) For award of Post-Judgment attorneys' fees and costs for the period ending with the hearing on this Motion.

Amended Notice of Motion (the "Motion") at 1:26-2:15 (filed: Jan. 5, 2026).

The Motion came on for hearing on June 12, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Western's Motion is **DENIED** in all respects because it is little more than a thinly-veiled, untimely Motion for reconsideration of the Court's Order filed and served on Western's counsel on December 15, 2025 that DENIED the sanctions sought there by Western against the same Defendant Hovanes Nadjarian for violating the same June 22, 2025 Order that Western seeks sanctions here against the same Defendant again. In essence, it's a repeat motion that asks the Court to reconsider its December 15, 2025 Order without meeting the standards for reconsideration under Code of Civil Procedure Section 1008. While Western euphemistically calls this unauthorized Motion "creative,"[1] it is in fact an abuse of the judicial process that disregards the virtue of finality and disregards the Court's *file-stamped December 15, 2025* Order that Western goes so far as

[1] Western Memo. of Points & Authorities In Support of Motion at 10:17-18 ("Western Memo.")(filed: Jan. 5, 2026).

to falsely say "*has not been filed*"[2] when Western filed this Motion on *January 5, 2026*. And while Court appreciates that Western strenuously disagrees with the Court's December 15, 2025 decision denying sanctions requested there, Western has put forth no grounds that convince the Court to reconsider let alone reverse itself.

Important background facts that Western now skirts are that on July 14, 2025 (in this decade-old case filed in 2016), Western in a motion requested the following four elements of relief:

1. To Amend the Judgment *nunc pro tunc* to add MLN TANKLINES, INC.;

2. To Amend the Judgment Debtor's name to HOVANES NADJARIAN, a/k/a MLN TANKLINES, INC.

3. Hold HOVANES NADJARIAN in contempt of Court; more specifically, Plaintiff asks this Court to "imprison" Mr. Nadjarian for "up to six months"; and

4. That HOVANES NADJARIAN pay Plaintiff $4,744.83 in reimbursement for Plaintiff's post-judgment attorney's fees ($ 3,160.00) and for Plaintiff's costs incurred ($1,584.83).

Amended Notice of Motion at 2:7-23 (filed: July 14, 2025). More specifically, regarding the contempt sanctions sought in item 3 above, Western sought to sanction Hovanes Nadjarian "for violating the Court's Order Granting Motion Compelling Third Party MLN Tanklines, Inc. to Obey Subpoena for Business Records of Judgment Debtor Hovanes Nadjarian [of] June 22, 2025." *Id.* at 2:11-13. After reviewing and carefully considering all the voluminous papers and record and giving all parties the full and fair opportunity to be heard at a hearing on October 17, 2025, the Court GRANTED the Relief sought in items 1, 2, and 4 above *but* DENIED the relief for contempt sanctions sought in item 3 above in a formal order that the Court signed on December 3, 2025, and which the Clerk filed and served on parties including on Western's counsel Joseph P. Thompson on December 15, 2025—as is crystal clear from the file-stamped December 15, 2025 Order on the public portal of the Santa Clara County Superior Court that anyone worldwide accessing this case was able to see as of December 15, 2025.

Disregarding that file-stamped December 15, 2025 Order, Western now redundantly moves for largely-similar elements of relief:

1. To Amend the assignment and turnover order to add HOVANES NADJARIAN, a/k/a MLN TANKLINES, INC., and MLN TANKLINES, INC.;

2. For Sanctions against HOVANES NADJARIAN for "disobey[ing] the Court's Order Granting Motion Compelling Third Party MLN Tanklines, Inc. to Obey Subpoena

[2] Amended Declaration of Joseph P. Thomson In Support of Motion at ¶ 5 ("Thompson Decl.") (filed: Jan. 5, 2026).

for Business Records of Judgment Debtor Hovanes Nadjarian [of] June 22, 2025"; and

3. For an award of post-judgment attorneys' fees for the period ending with the hearing on the motion and for reimbursement of costs incurred.

Amended Notice of Motion at 2:1-15

Regarding the first element of relief now sought, it is DENIED as redundant or unnecessary in light of the fact that the Court in its December 15, 2025 Order already GRANTED Western's request to Amend the Judgment nunc pro tunc to add MLN TANKLINES, INC. *and* Amend the Judgment Debtor's name to HOVANES NADJARIAN, a/k/a MLN TANKLINES, INC. And Western now, in the few perfunctory lines it spends in its new Motion on this amendment request, says nothing to convince the Court that this newly-requested amendment of the "assignment and turnover order" is necessary or justified in light of the relief already granted in the Court's December 15, 2025 Order.

Regarding the second element of relief now sought, Western openly disagrees with the Court's December 15, 2025 Order denying contempt sanctions for violating the June 22, 2025 Order by arguing that "failure of HOVANES NADJARIAN to obey the Court's Order [of June 22, 2025] is *ample justification* for the Court *to hold him in contempt*, or, if the Court will not do so . . . impos[e] monetary sanctions[.]" Western Memo. at 11:23-25. And while the Court respects Western's right vigorously to disagree with its decisions, here Western does not come close to satisfying the statutory requirements of Code of Civil Procedure Section 1008(a) for a motion for reconsideration. For this new Motion was *neither* made within 10 days after service by the Clerk of Court on December 15, 2025 of the file-stamped December 15, 2025 Order *nor* is based on new or different circumstances or law that change the Court's mind at all. C.C.P. § 1008(a).

The Court's careful review of the case docket confirms that the Court's Order denying the contempt sanction was signed by Judge Parrett on December 3, 2025, and filed and served on Western by our Clerk's Office on December 15, 2025. And this file-stamped December 15, 2025 Order was also posted on the Court's public portal on December 15, 2025 for anyone worldwide, including Western's counsel, to see on December 15, 2025. So the Court finds that Western's statement that "as of this date" of January 5, 2026 when Western filed this Motion that the file-stamped December 15, 2025 Order "has not been filed"[3] is false if not intentionally misleading. Western's Memo. at 3:19-25.

And the Court views Western's statement that the file-stamped December 15, 2025 Order "has not been filed" when Western filed this Motion on January 5, 2026 as misleading because Western's "justification" for bringing this repeat Motion is that—while supposedly "waiting" for this Order to be filed—Western while searching the internet came across "evasion tactics" online of HOVANES NADJARIAN for which he should be

[3] Thompson Decl. at ¶ 5 ("Thompson Decl.") (filed: Jan. 5, 2026).

sanctioned for allegedly violating the same June 22, 2025 Order. Western Memo. at 3:19-25 & 5:23-6:6.

The Court is unimpressed by Western's counsel's "creative" attempt to skirt the Court's December 15, 2025 Order denying Western's Motion for contempt sanctions for Nadjarian's alleged violation of the June 22, 2025 Order by claiming that (a) Western never saw the file-stamped December 15, 2025 Order when it filed this new motion on January 5, 2026, and (b) the Court's carefully-considered December 15, 2025 Order should change because Western now asks for "monetary sanctions" instead of "contempt sanctions" based on alleged violation of the same June 22, 2025 Order. So Western's request to for the Court to award "sanctions" now for allegedly violating the same June 22, 2025 Order that the Court already carefully considered but denied in its December 15, 2025 Order is respectfully DENIED in all respects now.

Regarding the last element of relief now sought asking for additional post-judgment attorneys' fees and costs, that request is DENIED as well. In the broad exercise of its discretion, the Court declines to award any attorneys' fees or costs now for the "13.20 hours" Western's counsel unilaterally decided to spend surfing the web, e.g., looking at websites of the "California Secretary of State, and other search sites" for evidence of Nadjarian's alleged violation of the June 22, 2025 Order. Amended Decl. of Joseph P. Thompson at ¶ 11 (filed on Jan. 5, 2026); & Supp. Decl. of Joseph P. Thompson at ¶ 22 (filed on March 30, 2026)(requesting an additional "10.0" hours for searching internet sites for evidence of Nadjarian's alleged violation of the June 22, 2025 Order). In the broad exercise of its discretion, the Court declines to award Western these attorneys' fees and costs sought now because the Court finds and rules that none of those 23.20 hours were *reasonably* incurred for this new motion that Western has lost in its entirety.

The Court also wishes to point out for the record that the voluminous *repeat* post-judgment arguments in this Motion—including more than five pages of single-spaced, dense text from a "previous (2022) . . . post judgment motion" that Western says it "now *repeats* for the benefit of the newly appointed judge"[4] is not well taken at all by the undersigned Judge—who will not permit Western to relitigate *years* of post-judgment arguments now under the *guise* that it is to "help" the new judge who practiced complex civil litigation for over twenty years before taking the bench.

To the extent that Western undoubtedly disagrees with multiple decisions of multiple Judges of Santa Clara County Superior Court who have presided over this case since it was filed a decade ago in 2016, Western is free vigorously to pursue its appellate remedies (if any remain) with the Sixth Appellate District, the California Supreme Court, and the United States Supreme Court itself. But this trial court will not entertain any further improper and untimely motions for reconsideration to relitigate this decade-old case unless and until an appropriate appellate authority says otherwise. After all, in the eyes of the law, finality is a virtue.

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[4] Western Memo. at 5:17-19 (emphasis added)

Conclusion & Order

For the foregoing reasons, Western's Motion is **DENIED** in its entirety with prejudice.

SO ORDERED.

Date: June 12, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 2

Case Name: *Jinsong Hu v. Fidelity National Title Company*

Case No.: 24CV450398

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Jinsong Hu ("Plaintiff") moves for relief under Code of Civil Procedure Section 473 for relief from the Court's Order of October 3, 2025, which denied Plaintiff's Motion for Reconsideration of the May 30, 2025 Order sustaining the Demurrer of Defendant Fidelity National Title Company ("Defendant") to Plaintiff's Complaint without leave to amend. (the "Motion") at 3:4-7 (filed: Oct. 13, 2025). Plaintiff also moves for leave to file a First Amended Complaint adding a new cause of action for aiding and abetting fraud. *Id.* at 3:7-8.

The Motion came on for hearing on June 12, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

Plaintiff filed a Complaint on October 28, 2024 against Fidelity National Title Company asserting five causes of action for (1) professional negligence (2) negligent misrepresentation (3) violation of California escrow law (4) breach of duty as an escrow agent and (5) unfair business practices. Defendant demurred on all causes of action on December 20, 2024. On May 30, 2025, the Court sustained Defendant's demurrer without leave to amend on all causes of action. On June 6, 2025, Plaintiff moved for reconsideration and leave to amend. On October 3, 2025, the Court denied Plaintiff's motion for reconsideration without prejudice, noting that the Court at that time had not yet seen Plaintiff's actual proposed amended Complaint—which Plaintiff at that time had not yet bothered to share with the Court—and so would not at that time rule on whether filing it would be futile.

On October 13, 2025, Plaintiff moved for relief from this Court's order under Code of Civil Procedure section 473, also requesting leave to amend the complaint. For the reasons the Court will now explain, the Court DENIES Plaintiff's Motion for Relief from this Court's Order Denying Reconsideration and DENIES Plaintiff's request for leave to file a First Amendment Complaint.

Analysis of the Requests for Judicial Notice

At the outset, the Court grants the requests for judicial notice in the Defendant's Request for Judicial Notice in Support of Defendant's Opposition to Plaintiff's Motion for Relief. The Court grants the request for judicial notice of the Order Sustaining Demurrer to Complaint, entered in this matter on June 18, 2025 ("Minute Order"); the Minute Order denying Plaintiff's Motion for Reconsideration entered in this matter on October 3, 2025; and Exhibit FJ27 to Plaintiff's Exhibits filed in this action on June 6, 2026 in support of Plaintiff's Motion for Reconsideration, on the basis that all are Court records and thus proper subjects for judicial notice. (Evid. Code, § 452, subd. (d) [judicial notice may be taken of "records of… any Court of this state[.]"].)

The Court denies the request for judicial notice of the following in the Defendant's Request for Judicial Notice in Support of Defendant's Opposition to Plaintiff's Motion for Relief because they are irrelevant to the Court's determination of this Motion: Mortgage between DMJ Home Solutions, LLC and Jinsong Hu, recorded on January 29, 2019, as Document No. 2019014449 of the Official Records of Alameda County Recorder; Commercial Deed of Trust between DMJ Home Solutions, LLC and Triumph Capital Partners, LLC, recorded on April 9, 2019, as Document No. 2019062849 of the Official Records of Alameda County Recorder; Subordination Agreement recorded on February 19, 2020, as Document No. 2020040281 of the Official Records of Alameda County Recorder; and Trustee's Deed Upon Sale recorded on December 24, 2020, as Document No. 2020363288 of the Official Records of Alameda County Recorder. Though Defendant's request for judicial notice of these items is unopposed, the Court denies the request for judicial notice because only relevant material is subject to judicial notice. (See *State Comp. Ins. Fund v. ReadyLink Healthcare, Inc.* (2020) 50 Cal.App.5th 422 [denying an unopposed request for judicial notice because the materials were not relevant to the determination of the issues].)

Analysis of Motion for Relief from Order Denying Reconsideration

To address a few preliminary issues before discussing the merits of this Motion for Relief under Section 473, Plaintiff's overly-long Motion for Relief from Order filed October 13, 2025 is in violation of California Rules of Court, rule 3.1113(d) [memorandum should be 15 pages or less except for summary judgment motions] and uses multiple fabricated citations. The statement that "Courts have repeatedly held that a pro se litigant's lack of legal knowledge constitutes excusable neglect" is patently false. (Plaintiff's Motion for Relief from Order ("Motion"), p. 17.) And contrary to what Plaintiff's Motion states, the statement "a party's ignorance of the rules of procedure may excuse his failure to take the requisite action" does not appear anywhere in *Elston v. City of Turlock* (1985) 38 Cal.3d 227 (Motion, pp. 15, 17.) Nor does the statement "[c]ourts are to be particularly vigilant to see that [unrepresented parties] do not lose their right to have their case heard" appear anywhere in *Lombardi v. Citizens Nat. Trust & Sav. Bank* (1955) 137 Cal.App.2d 206. Plaintiff's Motion also later cites *Hearn v. Howard* (2009) 177 Cal.App.4th 1193, 1206 to lend support for the latter proposition, but again, that statement does not appear anywhere in that case. (Motion, p. 17.) If he ever does that again before the undersigned Judge, Plaintiff will suffer sanctions that will sting.

Now Code of Civil Procedure Section 473 ("Section 473") provides that "[t]he Court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) Plaintiff argues that "his failure to seek leave to amend in his opposition to the demurrer was the result of excusable neglect stemming from his pro se status and lack of legal sophistication." (Motion, p. 4.) Plaintiff states that "[o]nly after the Court's ruling did Plaintiff realize he needed to pursue a fraud-based theory…prompt[ing] Plaintiff to research whether California law provides a basis for liability that does not depend on the existence of a special relationship. Through this research, Plaintiff discovered the doctrine of aiding and abetting fraud." (*Id.* at p. 16.)

Plaintiff's status as a pro per litigant is not excusable neglect within the meaning of the statute. "[A] self-represented litigant who is not indigent 'must expect and receive the same treatment as if represented by an attorney—no different, no better, no worse.'" (*Nuño v. California State University, Bakersfield* (2020) 47 Cal.App.5th 799, 814, quoting *Taylor v. Bell* (1971) 21 Cal.App.3d 1002, 1009.) In addition, "in propria persona litigants are not entitled to special exemptions from the California Rules of Court or Code of Civil Procedure." (*Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284, citing *Rappleyea v. Campbell* (1994) 8 Cal.4th 975.) Plaintiff seeks leave to amend to plead a new cause of action against Defendant because he was unaware that he could assert that cause of action. "Although an honest mistake of law is a valid ground for relief where a problem is complex and debatable, ignorance of the law coupled with negligence in ascertaining it will certainly sustain a finding denying relief." (*A & S Air Conditioning v. John J. Moore Co.* (1960) 184 Cal.App.2d 617, 620, internal citations omitted.) Here, Plaintiff's motion is not based on an honest mistake of law, but rather on ignorance of the law and failing to fully research all possible claims he had against Defendant *before* filing a lawsuit. That's not *excusable* neglect.

Plaintiff also argues that he "did not fully comprehend the procedural requirements . . . at the time of demurrer hearing." (Motion, p. 18.) A Court's failure to provide clear communications about procedure and deadlines can be a basis for relief from an order under Code of Civil Procedure section 473. (*Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284 ["special care should be used to make sure that verbal instructions given in Court and written notices are clear and understandable by a layperson."].) Here, Plaintiff does not argue that he should be granted leave to amend due to his failure to adhere to procedural requirements imposed by the Court. Rather, he argues that he should be granted leave to amend to allege a new cause of action because he did not know he could allege that cause of action in the first place. But as explained above, this is not *excusable* neglect under Code of Civil Procedure section 473.

Moreover, the mandatory relief provisions of Section 473 do not apply here. "The range of attorney conduct for which relief can be granted in the mandatory provision is broader than that in the discretionary provision and includes inexcusable neglect. But the range of adverse litigation results from which relief can be granted is narrower. Mandatory relief only extends to vacating a default which will result in the entry of a default judgment, a default judgment, or an entered dismissal." (*Leader v. Health Industries of America* (2001) 89 Cal.App.4th 603, 616.) None of the above apply here. A default in the context of the mandatory provision of Section 473 is a "'default' entered by the clerk (or the Court) when a defendant fails to answer a complaint[.]" (*English v. IKON Business Solutions, Inc.* (2001) 94 Cal.App.4th 130, 143 (*English*).) A default judgment is "a judgment entered after the defendant has failed to answer the complaint and the defendant's default has been entered." (*Ibid.*) A dismissal is "the withdrawal of an application for judicial relief by the party seeking such relief, or the removal of the application by a Court." (*Id.* at p. 144.) Though *English* addressed the issue of if summary judgment is a "dismissal" within the meaning of the statute, the Court did note that it had previously held that a dismissal following the sustaining of a demurrer without leave to amend on the grounds that the statute of limitations had run was not a dismissal. (*Id.* at p. 146, citing *Castro v. Sacramento County Fire Prot. Dist.* (1996) 47 Cal.App.4th 927.)

Moreover, *English* establishes that Courts should interpret the term "dismissal" narrowly and construe the "dismissal" to have a similar meaning as "default" and "default judgment," which both involve a defendant's failure to answer complaint. (*English,* at p. 146.)) In light of *English's* finding that "it does not follow that by using the word 'dismissal' in the mandatory provision of section 473(b), the Legislature intended to encompass every resolution of a case against a plaintiff[,]" the Court cannot find a basis for relief under the mandatory relief provisions of Section 473 here. (*Id.* at p. 144.) Accordingly, the Court **DENIES** Plaintiff's Motion for relief from the Court's Order Denying Reconsideration of the Court's Order Sustaining the Demurrer Without Leave to Amend.

Analysis of whether Leave to Amend should be granted in the context of this Motion for Relief from an Order Denying Reconsideration of an Order Sustaining the Demurrer Without Leave to Amend

Where, as here, the Court has sustained a demurrer to a complaint, Plaintiff seeking leave to amend that complaint has the burden of showing "a reasonable possibility that the defect can be cured by amendment." (*Loeffler v. Target Corp.* (2014) 58 Cal.4th 1081, 1100; *see also Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 ("Plaintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading")).

Here, in his opposition to the Demurrer, Plaintiff not only did *not* seek leave to amend but he also did not even try to show in what manner he can amend his Complaint nor how such an amendment would change the legal effect of his deficient pleading.

Moreover, as Judge Hayashi pointed out in her October 3, 2025 Order denying Plaintiff's Motion for Reconsideration of her Order Sustaining the Demurrer Without Leave to Amend, "Plaintiff has failed to show that his failure to seek leave to amend at the time he opposed the demurrer was due to inadvertence, mistake, or excusable neglect as required by Code of Civil Procedure Section 473." Minute Order at 2 (Oct. 3, 2025). The same remains true today, as the Court now finds that Plaintiff has *still* failed to show that his failure to seek leave to amend when opposing the Demurrer was due to inadvertence, mistake, or excusable neglect.

And while Judge Hayahsi, in an abundance of liberality and fairness to Plaintiff, also ruled in her October 3, 2025 Order that she would not make a final determination on whether or not Plaintiff filing a proposed First Amended Complaint would be *futile* "[w]ithout seeing the actual proposed Amended Complaint," *Id.* at 2, the undersigned Judge now has had the benefit of seeing the actual proposed Amended Complaint. And the Court now rules that filing this proposed Amended Complaint would indeed be futile.

Having carefully reviewed Plaintiff's proposed Amended Complaint, the Court now finds that it fails to show how its filing would cure the pleading deficiencies that led the Court to sustain the Demurrer because this proposed amendment fails to state *facts* sufficient to constitute a cause of action for aiding and abetting fraud or for *any* cause of action. Simply put, filing the proposed amendment would be futile because it does not state any claim.

For instance, to state a cause of action for aiding and abetting fraud, Plaintiff would need to plead facts to show the essential elements of a claim for aiding and abetting fraud: " "Liability may … be imposed on one who aids and abets the commission of an intentional tort if the person (a) knows the other's conduct constitutes a breach of duty and gives substantial assistance or encouragement to the other to so act or (b) gives substantial assistance to the other in accomplishing a tortious result and the person's own conduct, separately considered, constitutes a breach of duty to the third person." (*IIG Wireless, Inc. v. Yi* (2018) 22 Cal.App.5th 630, 654.) But here the proposed Amended Complaint fails to plead with specificity:

- any *facts* showing that Defendant knew that Herrera was defrauding Plaintiff by avoiding any specific obligations,

- let alone facts showing that Defendant gave any specific substantial assistance or encouragement to Herrera to defraud Plaintiff,

- let alone facts showing that Defendant owed Plaintiff any duty.

While the proposed amendment Complaint fails to plead facts sufficient to constitute a cause of action for aiding and abetting fraud, the Court in an abundance of fairness to Plaintiff has also considered whether the proposed amended Complaint pleads facts sufficient to constitute any cause of action. And finds it does not.

So although Plaintiff in this Motion for Relief (from the Order Denying Plaintiff's Motion for Reconsideration of its Order Sustaining of the Demurrer) does ask for leave to amend, Plaintiff fails to meet his burden of showing in what manner he can amend his pleading *and* how that amendment will change the legal effect of his pleading in light of the deficiencies identified in the Court's rulings sustaining the demurrer and denying the motion for reconsideration. (*See Goodman v. Kennedy* 18 Cal.3d at 349, *supra*, and *Hendy v. Losse* (1991) 54 Cal.3d 723, 742.). The proposed amendment still has the same pleading defect because it still fails to state facts sufficient to constitute any cause of action.

As Plaintiff has failed to carry his burden for leave to amend here, the Court in the exercise of its discretion *declines* to give Plaintiff leave to amend now in the context of this Order Denying Plaintiff's Motion for Relief from the Court's Order Denying Plaintiff's

Motion for Reconsideration of the Court's Order Sustaining the Demurrer. Plaintiff has had more than enough bites at this apple already. And the Court will not grant Plaintiff leave to commit an act of futility.

Accordingly, Plaintiff's request for leave to amend is **DENIED.**

Conclusion and Order

The Court **DENIES** Plaintiff's motion for relief from the Court's Order of October 3, 2025, which denied Plaintiff's Motion for Reconsideration of the Court's May 30, 2025 Order Sustaining the Demurrer of Plaintiff's Complaint without leave to amend.

The Court also **DENIES** Plaintiff's motion for leave to file a First Amended Complaint adding a new cause of action for aiding and abetting fraud because the proposed amendment fails to state facts sufficient to constitute *any* cause of action—and so would be futile.

Moreover the Court **ORDERS** Defendant Fidelity National Title Company as the prevailing party in this civil action to prepare and file a proposed Judgment in favor of Defendant and against Plaintiff within 20 days of today.

SO ORDERED.

Date: June 12, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 3

Case Name: *TD Bank USA, N.A., as Successor in Interest to Target National Bank v. Serena Salazar Marquez, et al.*

Case No.: 25CV459301

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff TD Bank USA, N.A., as Successor in Interest to Target National Bank ("Plaintiff") moves that the truth of all matters specified in the Requests for Admissions, Set One, be deemed admitted by Defendant Serena Salazar Marquez ("Defendant") under Code of Civil Procedure Sections 2023.010 *et seq*. and 2031.010 *et seq*. Notice of Motion (the "Motion") at 1:21-27 (filed: Jan. 7, 2026)

The Motion came on for hearing on June 12, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Plaintiff served the Requests for Admission, Set One, on Defendant on May 29. 2025. Declaration of attorney Laura M. D'Anna In Support of Motion ("D'Anna Decl.") at ¶ 2.

Defendant never responded to the Requests for Admission, Set One, D'Anna Decl. at ¶ 3, in spite of Defendant's obligation to respond to them under Code of Civil Procedure section 2033.240.

Under Code of Civil Procedure section 2033.280, because Defendant failed to respond to the Requests for Admission, Set One, Plaintiff moves for an Order deeming admitted by Defendant the truth of each matter in the Requests for Admission, Set One. C.C.P. 2033.280(b).

The Motion is well supported by the law, well supported by the facts set forth in the D'Anna Declaration, and reasonable in all respects.

Defendant does not argue otherwise. Indeed, Defendant has not opposed this Motion at all, which the Court views as Defendant conceding the Motion. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; *see also* Rule of Court 8.54(c): "A failure to oppose a motion may be deemed a consent to the granting of the motion." CRC Rule 8.54(c).)

Accordingly, the Court **GRANTS** the Motion in all respects. Specifically, it is hereby **ORDERED** that the truth of all specified facts in the Requests for Admission, Set One, served on Defendant Serena Salazar Marquez on May 29, 2025, is deemed admitted by Defendant Serena Salazar Marquez.

SO ORDERED.

Date: June 12, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

<u>Line 4</u>

Case Name: *Steven Rocheville v. Neely Segerstrom*

Case No.: 25CV467856

See ORDER above. [As Plaintiff under Code of Civil Procedure Section 472(a) timely filed a First Amended Complaint on June 1, 2026, Defendant's Demurrer to the original Complaint is now moot and **OFF CALENDAR**. Defendant is free to answer, demur, or otherwise respond to the First Amended Complaint within the time permitted by the Code of Civil Procedure. *See* C.C.P. § 472 (a) ("time for responding to an amended pleading shall be computed from the date of service of the amended pleading").]

<u>Line 5</u>

Case Name: *Argent Investments LLC v. Ye Rang Choi, et al.*
And Related Cross-Action

Case No.: 25CV468257

See ORDER above. [Cross-Defendants Argent Investments LLC and Stanley Woo filed a Demurrer to the First-Amended Cross-Complaint ("FACC"), noticed for hearing on June 12, 2026, and filed a Motion to Strike portions of the FACC, noticed for hearing on June 24, 2026. But California Rule of Court 3.1322(b) *requires* this Motion to Strike to be noticed for hearing and heard at the same date and time as this Demurrer. Accordingly, the Court *sua sponte* **ORDERS that this Demurrer is CONTINUED for hearing to June 24, 2026 at 9:00 AM in Department 16**, where it will be heard at the same date and time as the Motion to Strike.]

Line 6

Case Name: *Andrew Perez v. Accenture LLP, et al.*

Case No.: 25CV471230

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Accenture LLP ("Defendant" or "Accenture") moves to compel arbitration and stay this civil action pending completion of the arbitration based on the binding agreement of Plaintiff Andrew Perez ("Plaintiff") to arbitrate all legal claims and disputes arising from or related to Plaintiff's employment with Accenture. Notice of Motion (the "Motion") at 2:5-18 (filed Nov. 19, 2025).

The Motion came on for hearing on June 12, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

Plaintiff Andrew Perez ("Plaintiff") was offered an opportunity to join Accenture LLP ("Defendant") as a Content Review Associate on February 3, 2020. (Declaration of Patricia Gonzalez at ¶ 7.) Defendant sent Plaintiff a zip folder of documents including an Offer Letter, Arbitration Agreement, Conditions of Employment, Intellectual Property Agreement, and other key documents. (*Ibid.*) Plaintiff was required to sign these documents as a condition of his employment. (Declaration of Shelby Burroughs ["Burroughs Decl."], Ex. A.) Plaintiff electronically signed these documents, including the Arbitration Agreement, on February 3, 2020. (*Ibid.*) Plaintiff commenced employment on April 1, 2020. (Burroughs Decl. at ¶ 7.)

Plaintiff went on paternity leave between October through November 2022. (Complaint at ¶ 13(b).) Plaintiff alleges that "[a]lthough he was allowed to take eight weeks of paternity leave, he only took four weeks of paternity leave due to pressure to return to work by defendant." (*Ibid.*) In mid-November, Plaintiff noticed that he was not receiving paternity leave pay. (Complaint at ¶ 13(c).) Plaintiff received payment for paternity leave only after complaining to Human Resources. (*Id.* at ¶¶ 13(d), (e).) Upon returning to work, Plaintiff was placed on a Performance Improvement Plan ("PIP") as he was accused of receiving complaints from clients. (*Id.* at ¶ 13(e).) Plaintiff complained to Human Resources that he believed the PIP was issued in retaliation. (*Ibid.*) Plaintiff was subsequently removed from his work team and relocated to another position. (Complaint at 13(f).)

Plaintiff again went on paternity leave between February 5, 2024 to April 1, 2024. (Complaint at ¶ 13(h).) While on leave, Plaintiff was notified that he had been removed from his team. (*Ibid.*) Plaintiff alleges that he "believed this was yet another example of retaliation, as he was unaware of anyone else being removed who had not taken paternity leave." (*Ibid.*) Plaintiff complained to Human Resources, but no investigation was conducted. (Complaint at ¶ 13(i).) Instead, he was told that he would be required to either resign and receive severance, secure a new project within eight weeks, or face termination with severance. (*Ibid.*) Plaintiff was unable to secure a new position. (*Ibid.*) In or around April 2024, Plaintiff was informed that he was being terminated effective June 3, 2024. (Complaint at ¶ 14.)

Plaintiff filed this civil action on July 23, 2025, bringing twelves causes of action for (1) violation of California Family Rights Act ("CFRA"); (2) hostile work environment in violation of the Fair Employment and Housing Act ("FEHA"); (3) retaliation in violation of FEHA; (4) failure to prevent discrimination, harassment, or retaliation in violation of FEHA; (5) negligent hiring, supervision, and retention; (6) wrongful termination in violation of public policy; (7) intentional infliction of emotional distress; (8) discrimination in violation of FEHA; (9) breach of express oral contract not to terminate employment without good cause; (10) breach of implied-in-fact contract not to terminate employment without good cause; (11) whistleblower retaliation; (12) failure to hire in violation of FEHA.

Defendant now moves to compel arbitration of these claims under the Arbitration Agreement ("the Agreement") executed by Plaintiff on February 3, 2020. Plaintiff argues that arbitration is precluded by the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 ("EFAA") and because the Agreement is unconscionable.

Having carefully considered the parties' arguments, the Court agrees with Defendant and GRANTS the motion for the reasons explained below. The Court further grants Defendant's Request for Judicial Notice of the excerpted American Arbitration Association Employment/Workplace Arbitration and Rules and Mediation Procedures attached as Exhibits 1 to 3 pursuant to Evidence Code section 452, subdivision (h). The Court also grants Plaintiff's Request for Judicial Notice of Exhibits 4 through 9 pursuant to Evidence Code section 452, subdivisions (c) and (d) because these exhibits constitute legislative acts and court records.

Legal Standard on Motion to Compel Arbitration

Defendant argues that the Federal Arbitration Act ("FAA") governs the Arbitration Agreement based on the language of the Agreement and because its operations affect interstate commerce. The Agreement states, "[t]his Agreement is governed by the Federal Arbitration Act (the 'FAA') (9 U.S.C. §§ 1 et seq.) . . . ." (Burroughs Decl., Ex. B.) In any event, "[e]mployment contracts, except for those covering workers engaged in transportation, are covered by the FAA." (*EEOC v. Waffle House, Inc.* (2002) 534 U.S. 279, 289.)

Under the FAA, the court's role is limited to determining "(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue." (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207

F.3d 1126, 1130.) To determine "whether a valid contract to arbitrate exists," courts apply "ordinary state law principles that govern contract formation." (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

Analysis of the Motion

As an initial matter, the Court finds that the parties entered into an agreement to arbitrate. Defendant has attached a copy of the Arbitration Agreement electronically signed by Plaintiff on February 3, 2020. (See Burroughs Decl., Ex. B.) (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165 [noting that it is a moving party's burden to produce prima facie evidence of an agreement to arbitrate by attaching the agreement to the motion].) Plaintiff's electronic signature has the same legal effect as a handwritten signature and is express acceptance of an agreement to arbitrate. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060; *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 777.) Defendant has set forth the procedures undertaken to authenticate Plaintiff's signature in the Declaration of Pricilla Gonzalez. Plaintiff does not dispute that he signed the Agreement. To the extent Plaintiff argues he did not understand the legal significance of the Agreement when he signed it, "[a]n arbitration clause within a contract may be binding on a party even if the party never actually read the clause." (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) The general rule is that "one who assents to a contract is bound by its provisions and cannot complain of unfamiliarity with the language." (*Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 383.)

Moreover, the Court finds that the broad scope of the Agreement covers all of Plaintiff's claims in this civil action. The Agreement applies to "all disputes, controversies and claims arising out of or relating to Your employment with Accenture Flex or Your separation from employment, that Accenture Flex may have against You or that You may have against Accenture Flex and/or against any of its officers, directors, employees or agents in their capacity as such ('Covered Claims')." (Burroughs Decl., Ex. B at ¶ 2.) Covered Claims include "discrimination and retaliation, and any other federal, state and local laws regarding employment" as well as claims for breach of contract and claims for breach of post-employment restrictive covenants. (*Ibid.*) Plaintiff has sued Defendant for hostile work environment, retaliation, wrongful termination, and failure to prevent discrimination in violation of FEHA, as well as breach of contract, among other claims. Plaintiff's claims arise out of his employment with Defendant and concern his paternity leave and separation from employment.

In Opposition Plaintiff argues that, even if the Agreement covers all of Plaintiff's claims, the EFAA applies to bar arbitration of his claims.

The EFAA Does Not Cover Plaintiff's Claims

The EFAA provides that "at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute . . . no predispute arbitration agreement . . . shall be valid or enforceable with respect to a case which is filed under

Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute." (9 U.S.C. § 402, subd. (a).) Additionally, the EFAA provides that its applicability "shall be determined under Federal law." (9 U.S.C. § 403, subd. (b).) "There is a split among federal district courts in and outside the Ninth Circuit about the appropriate standard for determining 'the allegations that are necessary to invoke the EFAA in the first place and to determine whether the statute is applicable to the case.'" (*MacKay v. PetSmart, Inc.* (C.D. Cal. Dec. 2, 2025) 2025 U.S. Dist. LEXIS 168963 [citing *Diaz-Roa v. Hermes Law, P.C.* (S.D.N.Y. 2024) 757 F.Supp. 3d 498 (*Diaz-Roa*)].) Some courts have relied on the pleading standard set forth under Federal Rule of Civil Procedure 12(b)(6) for failure to state a claim, while others have relied on the plausibility standard. (*Van De Hey v. EPAM Sys.* (N.D.Cal. Feb. 28, 2025) 24-cv-08800-RFL, 2025 U.S. Dist. LEXIS 48775 at p. 8 (*Van De Hey*).) Under the plausibility standard, a plaintiff need only "plead nonfrivolous claims relating to sexual assault or to conduct alleged to constitute sexual harassment, with the sufficiency of those claims to be reserved for proper merits adjudication." (*Diaz-Roa*, *supra*, 757 F.Supp.3d at p. 533.) The Court adopts the more stringent plausibility standard.

Gov. C. § 12940(j)(1) prohibits "harassment" based upon "sex" or "sexual orientation." "Courts have recognized two theories of actionable sexual harassment under FEHA. The first is quid pro quo harassment, where a term of employment is conditioned upon submission to unwelcome sexual advances. The second is hostile work environment, where the harassment is sufficiently pervasive so as to alter the conditions of employment and create an abusive work environment." (*Mokler v. County of Orange* (2007) 157 Cal.App.4th 121, 141 [internal quotation marks and citations omitted].) Plaintiff alleges harassment based on a hostile work environment.

To establish a prima facie case of a hostile work environment, Plaintiff must show "that (1) [plaintiff] is a member of a protected class; (2) [plaintiff] was subjected to unwelcome harassment; (3) the harassment was based on [plaintiff's] protected status; (4) the harassment unreasonably interfered with [plaintiff's] work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendants are liable for the harassment." (*Ortiz v. Dameron Hospital Assn.* (2019) 37 Cal.App.5th 568, 581.) In sum, "[a] claim for hostile environment sexual harassment exists under the FEHA where the plaintiff was subject to unwelcome conduct or comments because of his or her sex and the result was harassment so severe or pervasive that the conditions of plaintiff's employment were altered." (*Pantoja v. Anton* (2011) 198 Cal.App.4th 87, 114.)

To be sure, "[s]exually harassing conduct need not be motivated by sexual desire." (Gov't Code § 12940, subd. (j)(4)(C); see *Taylor v. Nabors Drilling USA, LP* (2014) 222 Cal.App.4th 1228, 1240 ["California courts have recognized that a sexual motive or interest is not required for sexual harassment under the FEHA."]; *Pantoja, supra,* 198 Cal.App.4th at p. 114; *Singleton v. United States Gypsum Co.* (2006) 140 Cal.App.4th 1547, 1564.) "In every case, however, the plaintiff must show a discriminatory intent or motivation based on gender." (*Pantoja, supra,* 198 Cal.App.4th at p. 114.) Although sex discrimination and sexual harassment are distinct causes of action, FEHA sill "regard[s] the prohibition against sexual harassment part and parcel of the proscription against sexual discrimination." (*Lyle v. Warner Brothers Television Productions* (2006) 38

Cal.4th 264, 278.)

"Whether the conduct of the alleged harassers was sufficiently severe or pervasive to create a hostile or abusive working environment depends on the totality of the circumstances. 'These may include the frequency of the discriminatory conduct; its severity; whether it is physically threatening or humiliating, or a mere offensive utterance; and whether it unreasonably interferes with an employee's work performance.' [Citations.] 'Common sense, and an appropriate sensibility to social context, will enable courts and juries to distinguish between simple teasing or roughhousing…and conduct [that] a reasonable person in the plaintiff's position would find severely hostile or abusive.' [Citations.]" (*Rehmani v. Super. Ct.* (2012) 204 Cal.App.4th 945, 951-952.)

"A single incident of harassing conduct is sufficient to create a triable issue regarding the existence of a hostile work environment if the harassing conduct has unreasonably interfered with the plaintiff's work performance or created an intimidating, hostile, or offensive working environment. In that regard, the Legislature hereby declares its rejection of the United States Court of Appeals for the 9th Circuit's opinion in *Brooks v. City of San Mateo* (2000) 229 F.3d 917 and states that the opinion shall not be used in determining what kind of conduct is sufficiently severe or pervasive to constitute a violation of the California Fair Employment and Housing Act." (Gov't Code, § 12923, subd. (b); see *Beltran v. Hard Rock Hotel Licensing, Inc.* (2023) 97 Cal.App.5th 865, 880 [criticizing older cases requiring concerted and repeated pattern of harassment to create a hostile work environment in summary judgment context].)

Here, Plaintiff does not allege any unwelcome comments made about him taking paternity leave. Instead, the conduct Plaintiff alleges includes that he was pressured to take less leave, denied pay, placed on a PIP, removed from his team, and eventually terminated. (Complaint at ¶¶ 13(b)-(i), 14.) The Court finds that these actions amount to no more than personnel decisions which do not come within the meaning of harassment.

As put by the Second Appellate District Court of Appeal in *Janken v. GM Hughes Electronics*:

> We conclude, therefore, that the Legislature intended that commonly necessary personnel management actions such as hiring and firing, job or project assignments, office or work station assignments, promotion or demotion, performance evaluations, the provision of support, the assignment or nonassignment of supervisory functions, deciding who will and who will not attend meetings, deciding who will be laid off, and the like, does not come within the meaning of harassment. These are actions of a type necessary to carry out the duties of business and personnel management. These actions may retrospectively be found discriminatory if based on improper motives, but in that event the remedies provide by the FEHA are those for discrimination, not harassment. Harassment by contrast, consists of actions outside the scope of job duties which are not of a type necessary to business and personnel management. This significant distinction underlies the differential treatment of harassment

and discrimination in the FEHA.

(*Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 64-65.). Likewise here, Plaintiff may later show that these actions were discriminatory. However, this conduct does not state a claim for harassment because decisions such as placing Plaintiff on a PIP or removing him from his team are acts within the scope of job duties necessary to do business and personnel management. Plaintiff does not complain of actions such as "verbal epithets, derogatory comments, physical interference with freedom of movement" that are outside the scope of job duties and would otherwise constitute harassment. (*Id.* at p. 63.) Thus, the EFAA does not apply in the absence of a plausible sexual harassment claim. And as the EFFA does not apply here, it does not bar arbitration of Plaintiff's claims here.

The Arbitration Agreement is Not Unconscionable

Plaintiff maintains that the Arbitration Agreement is unenforceable because it is both procedurally and substantively unconscionable. The party challenging a contractual arbitration provision bears the burden of proving that it is both procedurally and substantively unconscionable. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126 (*OTO*).) This may be done on a sliding scale, where the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required, and vice versa. (*Id.* at pp. 125-126.) Nevertheless, both must be shown. Procedural unconscionability focuses on oppression or surprise to the "weaker" party based on unequal bargaining power, whereas substantive unconscionability focuses on the terms of the agreement and whether they are overly harsh or one-sided. (*OTO, supra,* 8 Cal.5th at pp. 125-129.) The Court thus proceeds to consider whether the Agreement is procedurally and substantively unconscionable.

<u>The Agreement is not procedurally unconscionable.</u>

The factors that the court examines to determine whether there was "oppression" in the signing of an agreement generally include: " '(1) the amount of time the party is given to consider the proposed contract; (2) the amount and type of pressure exerted on the party to sign the proposed contract; (3) the length of the proposed contract and the length and complexity of the challenged provision; (4) the education and experience of the party; and (5) whether the party's review of the proposed contract was aided by an attorney.'" (*OTO, supra*, 8 Cal.5th at pp. 126-127 [quoting (*Grand Prospect Partners, L.P. v. Ross Dress for Less, Inc.* (2015) 232 Cal.App.4th 1332, 1348].)

The Agreement here is a stand-alone six-page document that calls out the jury waiver in bold letters. (Burroughs Decl., Ex. B at ¶ 1.) Plaintiff maintains he was not given an opportunity to negotiate the terms of the Agreement and that he signed the Agreement as soon as possible "so as not to delay acceptance of the job offer." (Opposition at p. 3:13-14; Declaration of Andrew Perez ["Perez Decl."] at ¶ 5.) He did not consult with an attorney prior to signing the Agreement. (Perez Decl. at ¶ 6.) Nevertheless, while Plaintiff was required to sign the Agreement as a condition of employment, "the cases uniformly agree that a compulsory predispute arbitration agreement is not rendered unenforceable just because it is required as a condition of employment or offered on a 'take it or leave it' basis." (*Lagatree v. Luce* (1999) 74 Cal.App.4th 1105, 1127.)

Having carefully weighed all the relevant factors, circumstances, and terms of the Agreement, the Court finds that the Agreement is not procedurally unconscionable.

<u>The Agreement is not substantively unconscionable.</u>

Substantive unconscionability focuses on the actual terms of the agreement and evaluates whether they create overly harsh or one-sided results. (*Armendariz Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114 (*Armendariz*).) The court assesses whether the agreement reallocates risks in an objectively unreasonable or unexpected matter. (*Jones v. Wells Fargo Bank* 112 Cal.App.4th 1527, 1539.) "In assessing substantive unconscionability, the paramount consideration is mutuality." (*Pinela v. Neiman Marcus Group, Inc.* (2015) 238 Cal.App.4th 227, 241 [internal citation and quotation marks omitted].) Arbitration agreements are substantively unconscionable where they lack a "modicum of bilaterality," "without at least some reasonable justification for such onesidedness based on 'business realities.'" (*Armendariz, supra*, 24 Cal.4th at p. 117.)

Armendariz instructs that there are "five minimum requirements for the lawful arbitration of such rights pursuant to a mandatory employment arbitration agreement. Such an arbitration agreement is lawful if it '(1) provides for neutral arbitrators, (2) provides for more than minimal discovery, (3) requires a written award, (4) provides for all of the types of relief that would otherwise be available in court, and (5) does not require employees to pay either unreasonable costs or any arbitrators' fees or expenses as a condition of access to the arbitration forum. Thus, an employee who is made to use arbitration as a condition of employment "effectively may vindicate [his or her] statutory cause of action in the arbitral forum." ' " (*Armendariz, supra*, 24 Cal.4th at p. 102.)

The Arbitration Agreement satisfies these factors. As Defendant notes, the Agreement adopts and incorporates the American Arbitration Association's Employment Arbitration Rules and Mediation Procedures ("AAA Rules"). (Burroughs Decl., Ex. B at ¶ 6(a).) The Arbitration Agreement provides that arbitration shall be "held before a single neutral arbitrator, selected in accordance with the Rules." (*Ibid.*) Discovery is permitted under Rule 21 of the AAA Rules, which provides "[t]he arbitrator shall manage any necessary exchange of information among the parties, including depositions, interrogatories, document production, or other means . . . ." (Accenture Request for Judicial Notice, Ex. 2.) Rule 45 further requires the arbitrator to issue a written award the Agreement mandates that the arbitrator may award remedies that would otherwise be available in court. (Accenture Request for Judicial Notice, Ex. 3; Burroughs Decl., Ex. B at ¶ 6(c).) The Agreement does not impose unreasonable costs on Plaintiff and provides, "[y]ou will pay to the AAA only that portion of the arbitration filing fee that is equal to the amount you would be required to pay to initiate a lawsuit in the appliable state or federal court, including if you are unable to pay the arbitration filing fee. Accenture will pay the remainder of the arbitration administrative fees, the arbitrator's fees and costs, and any other fees or costs unique to arbitration." (Burroughs Decl., Ex. B at ¶ 6(d).) The Agreement, therefore, complies with *Armendariz*.

Plaintiff argues the Agreement lacks mutuality because it only applies to Plaintiff's claims and exempts Defendant's claims from arbitration. As noted by Defendant, however, Accenture is also required to arbitrate claims that only it would bring against an employee such as "claims for breach of post-employment restrictive covenants . . . claims for fraud or misappropriation, claims for misappropriation of trade secrets." (Burroughs Decl., Ex. B at ¶ 2.) Moreover, both parties are prohibited from arbitrating certain claims such as patent, copyright, or trademark. (*Riley v. N.Y. Film Acad., Ltd.* (C.D. Cal. Dec. 6, 2016) CV-16-7549-MWF (JCx), 2016 U.S. Dist. LEXIS 204517 at *9-10 [noting that the agreement excluded both parties' claims related to trade secret, patent, copyright, and trademark and did not lack mutuality].) Nothing prevents Plaintiff from seeking "comparable protection for [his] personal information during arbitration proceedings, as circumstances may warrant." (*Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1250.)

Plaintiff also argues the Agreement's injunctive relief carve-out is substantively unconscionable because "an employee rarely, if ever, has cause to seek injunctive or equitable relief against their employer." (Opposition at p. 6:22-23.) Nevertheless, the Agreement is bilateral in that it provides "[e]ither You or Accenture Flex may seek and obtain from a court any injunctive or equitable relief (*e.g.* a temporary restraining order or preliminary injunction) necessary to maintain (and/or restore) the status quo or to prevent the possibility of irreversible or irreparable harm pending final resolution of arbitration or court proceedings as applicable." (Burroughs Decl., Ex. B at ¶ 5.) When an injunctive relief carve-out provision applies equally to both parties, that "dictates against a finding of substantive unconscionability" unless it can be shown that the end result is "overly harsh, unduly oppressive, or unreasonably favorable" to the other party. (*Borgarding v. JPMorgan Chase Bank* (C.D. Cal. Oct. 31, 2016) CV 16-2485 FMO (RAOx) 2016 U.S. Dist. LEXIS 191612 at *22.) Plaintiff has not demonstrated that the end result is overly harsh, unduly oppressive, or unreasonable favorable to Defendant. Therefore, the Court does not find this term to be substantively unconscionable.

Last, Plaintiff argues that the Agreement's PAGA waiver is substantively unconscionable. The Agreement provides, "[n]either You nor Accenture Flex is permitted to bring Covered Claims on a class, collective, consolidated or representative basis." (Burroughs Decl., Ex. B at ¶ 4.) In *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639, 644-645, the United States Supreme Court left the holding of *Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348, 380 undisturbed that a blanket PAGA waiver is unconscionable under California law. (See *Alberto, supra*, 91 Cal.App.5th at p. 494; see also *Adolph v. Uber Technologies* (2023) 14 Cal.5th 1104, 1117.) *But* the Agreement here is not a wholesale waiver because it only waives representative claims. The Agreement is clear that the covered claims are to proceed on an individual basis only, and the waiver is therefore, not unlawful. (Burroughs Decl., Ex. B at ¶ 4.) (See *Valencia v. Mattress Firm, Inc.* (C.D. Cal. Feb. 16, 2023) C 22-06875 WHA, 2023 U.S. Dist. LEXIS 26863 at *8 [noting that the agreement did not operate as a wholesale waiver because "representative actions" referred to non-individual or class claims, allowing plaintiff to raise the individual portion of her PAGA claim]; see also *Martinez-Gonzalez v. Elkhorn*

Packing Co., LLC (N.D. Cal. 2022) 635 F.Supp.3d 883, 899 ["The waiver here is *not* a wholesale waiver of Plaintiff's individual and representative PAGA rights; it only waives Plaintiff's right to file a non-individual PAGA claim on behalf of other workers. Accordingly, the waiver provision her is not unlawful."].)

Since the waiver is not unlawful, the Court need not consider its severability, but in any event notes that the Agreement contains a severability clause that is identical to that in *Viking River*, requiring the collective action to proceed in court should the waiver be found invalid. (Burroughs Decl., Ex. B at ¶ 4.) Defendant is, therefore, entitled to enforce the Agreement to the extent it requires Plaintiff to bring his individual PAGA claims in arbitration. And while Plaintiff does not bring any PAGA claims in this action, the Agreement is not substantively unconscionable in this regard (or at all).

Having carefully weighed all the relevant factors, circumstances, and terms of the Agreement, the Court finds that the Agreement is not substantively unconscionable.

As the Court finds that the Agreement is not procedurally unconscionable and is not substantively unconscionable, the Court rules that the agreement is not unconscionable. Accordingly, as the Court rules that the agreement is not unconscionable, Plaintiff's unconscionability argument to avoid arbitration *required by this Agreement* fails.

Conclusion and Order

Defendant's Motion to Compel Arbitration is **GRANTED** in its entirety. This civil action is **STAYED** in its entirety pending the outcome of this arbitration. (Code Civ. Proc. § 1281.4; 9 U.S.C. § 3.)

SO ORDERED.

Date: June 12, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 7

Case Name: *Calisha Bichko*
v.
Vic Web Radio LLC d/b/a Vic's Media Group, et al.

Case No.: 25CV473371

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Calisha Bichko ("Plaintiff") moves under Code of Civil Procedure Section 437c for an Order granting summary judgment, or in the alternative, summary adjudication in Plaintiff's favor on each of the Four Causes of Action in this civil action. Notice of Motion (the "Motion") at 2:4—2.7 (filed Feb. 18, 2026). Plaintiff makes this Motion on the grounds that there is no triable issue of material fact and Plaintiff is entitled to judgment as a matter of law on the following causes of action in the Complaint filed by Plaintiff against Defendants Vic Web Radio LLC d/b/a Vic's Media Group, and Victor Webster, an individual (collectively, "Defendants"):

> **Issue 1:** Plaintiff's First Cause of Action, alleging Breach of Contract, is subject to summary judgment or summary adjudication because there is no genuine issue of material fact and Plaintiff is entitled to judgment as a matter of law;
>
> **Issue 2:** Plaintiff's Second Cause of Action, alleging Promissory Fraud, is subject to summary judgment or summary adjudication because there is no genuine issue of material fact and Plaintiff is entitled to judgment as a matter of law;
>
> **Issue 3:** Plaintiff's Third Cause of Action, alleging violation of California Labor Code §§ 204, 210, 226, and 2802, is subject to summary judgment or summary adjudication because there is no genuine issue of material fact and Plaintiff is entitled to judgment as a matter of law; and
>
> **Issue 4:** Plaintiff's Fourth Cause of Action, alleging violation of California's Business & Professions Code § 17200 *et seq.* is subject to summary judgment or summary adjudication because there is no genuine issue of material fact and Plaintiff is entitled to judgment as a matter of law.

Id. at 2:7—3:3.

The Motion came on for hearing on June 12, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

Plaintiff brings this civil action against Defendants Vic's Group and Webster.

On August 22, 2025, Plaintiff filed a complaint against Defendants, asserting the following four causes of action:

1. Breach of Contract;
2. Promissory Fraud;
3. Violation of Labor Code Sections 204, 210, 226, and 2802; and
4. Violation of Business and Professions Code Section 17200 *et seq.*

According to the Complaint, Defendants failed to pay Plaintiff for work she performed as General Manager for Vic's Group under an "Independent Contractor Agreement" despite Plaintiff's full performance of her contractual obligations while working at the radio station. (Complaint, ¶¶ 1, 11, 14.) Plaintiff alleges she was also misclassified as an Independent Contractor. (Complaint, ¶ 2.) Plaintiff has made several attempts to obtain just compensation but has been largely ignored by Webster. (*Id.* at ¶ 21.) When Webster has responded, he only offered excuses. (*Ibid.*)

On December 3, 2025, Plaintiff filed this Motion for summary judgment, or in the alternative, summary adjudication for each of the four causes of action, under Code of Civil Procedure Section 437c. Motion at 2:4—3:3.

The Motion is unopposed.

I. Legal Standard on Motion for Summary Judgment or Summary Adjudication

A motion for summary judgment or summary adjudication "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c).)

The "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact[.]" (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Id.* at p. 851.)

If the moving party makes the necessary initial showing, the burden of production shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Augilar*, *supra*, 25 Cal.4th at p. 850.) "There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Ibid*.) “[I]f the court concludes that the [opposing party’s] evidence or inferences raise a triable issue of material fact, it must conclude its consideration and deny the [moving party’s] motion.” (*Id*. at p. 856.)

Throughout the process, the trial court “must consider all of the evidence and all of the inferences reasonably drawn therefrom[.]” (*Augilar*, *supra*, 25 Cal.4th at p. 844 [internal quotations omitted].) The moving party’s evidence is strictly construed, while the opposing party’s evidence is liberally construed. (*Id*. at p. 843.)

II. Analysis of the Motion for the First Cause of Action for Breach of Contract

“To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff’s performance of the contract or excuse for nonperformance, (3) the defendant’s breach, and (4) the resulting damage to the plaintiff.” (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.)

In support of her Motion regarding the First Cause of Action for Breach of Contract, Plaintiff provides the following evidence:

1. Plaintiff and Webster, owner of Vic’s Group, entered into an employment contract entitled Independent Contractor Agreement (“the Agreement”) on May 1, 2025. (UMF 1 [Ex. 1].)

2. Plaintiff fully performed her obligations under the Agreement by serving as general manager and completing all tasks assigned by her employer, Webster. (UMF 2 [Bichko Decl., ¶¶ 6-10].)

3. Under the Agreement, Defendants were aware they were obligated to pay Plaintiff $3,500 a month plus additional compensation for additional tasks. (UMFs 3, 4 [Ex. 1, ¶¶ 3-4].)

4. During three months of employment, Defendants compensated Plaintiff with $1,000 and thereafter, no further payments were made pursuant to the Agreement leaving an unpaid balance of $11,013.79. (UMF 8 [Ex. 4].)

Based on the foregoing, Plaintiff meets her initial burden of production demonstrating that Defendants entered into a signed, written agreement; Plaintiff performed by serving as general manager and completing additional required tasks; and Defendant breached the Agreement by failing to compensate payments as required by the Agreement, resulting in damage to Plaintiff.

Defendants failed to oppose the Motion for summary judgement and therefore have not met their burden of raising a triable issue of material fact.

Accordingly, Plaintiff’s Motion for Summary Adjudication of the First Cause of

Action for Breach of Contract is GRANTED in favor of Plaintiff and against Defendants.

III. Analysis of the Motion for the Second Cause of Action Promissory Fraud

"Promissory fraud is a species of fraud requiring proof of '(1) a promise made regarding a material fact without any intention of performing it; (2) the existence of the intent not to perform at the time the promise was made; (3) intent to deceive or induce the promisee to enter into a transaction; (4) reasonable reliance by the promisee; (5) nonperformance by the party making the promise; and (6) resulting damage to the promise[e].'" (*Ryder v. Lightstorm Entertainment, Inc.* (2016) 246 Cal.App.4th 1064, 1079.)

In support of her Motion regarding the Second Cause of Action for Promissory Fraud, Plaintiff provides the following evidence:

1. Defendants promised to pay Plaintiff $3,500 per month, plus additional compensation for additional tasks. (UMF 9 [Ex. 1].)

2. At the time of entering into the Agreement, Defendants knew they could not afford the agreed-upon compensation. (UMF 10 [Defendants' Answer, ¶ 3(b); Bichko Decl., ¶¶ 6-10].)

3. Defendants made the promise to pay the compensation amounts to induce Plaintiff to continue working and operating the radio station for Defendants' own financial benefit, knowing the radio station could not function without her. (UMF 11 [Bichko Decl., ¶ 6; Defendants' Answer, ¶¶ 4, 5].)

4. Plaintiff relied on Defendants' promise to pay in accepting to maintain her role as General Manager. (UMF 12 [Ex. 1; Bichko Decl., ¶¶ 6, 10].)

5. Plaintiff was damages due to the outstanding invoices as a result of Defendants' failure to compensate her as agreed. (UMF 13 [Exs. 1-4, Defendant's Answer, ¶¶ 4-6].)

The Court does not find that Plaintiff meets her burden as to the third element of the promissory fraud claim. The cited evidence includes only Plaintiff's own declaration stating that Webster acquired the radio station where Plaintiff was already serving as a general manager and asked plaintiff to stay as general manager. (Bichko Decl., ¶ 6.) Moreover, the cited portions of Defendants' answer indicate that *Plaintiff* insisted the station could not operate without her, Webster did not want to work with Plaintiff long term, and Webster's predecessor *instructed Plaintiff* that as part of the sale she should train Webster to operate the radio station on his own. (Defendant's Answer, ¶¶ 3(b), 5.) Defendants' answer further states that Webster was waiting for funds to come in to help pay the balance owed to Plaintiff. (*Id.* at ¶ 6.). Hence, the Court finds that triable issues of fact *exist* over this third element. Accordingly, as Plaintiff does not establish that there is no triable issue of material fact as to Defendants' intent, Plaintiff has not met her initial burden for purposes of this Motion.

To be crystal clear, the Court does *not* now rule or suggest at all that Plaintiff wins or even is likely to win at trial on this third element, but rather (more modestly) that triable issues of fact *exists* over this third element of the promissory fraud claim, rendering summary adjudication of this Second Cause of Action inappropriate.

Accordingly, Plaintiff's Motion for Summary Adjudication of the Second Cause of Action for Promissory Fraud is DENIED.

As the Second Cause of Action for Promissory Fraud survives, Plaintiff's Motion for Summary Judgment seeking to dispose completely of the *entire* civil action fails as a matter of logic and law. Accordingly, Plaintiff's Motion for Summary Judgment is DENIED as well.

IV. Analysis of the Motion for the Third Cause of Action for Violation of Labor Code Sections 204, 210, 226, and 2802

As a threshold matter regarding the Third Cause of Action, Plaintiff alleges that she is misclassified as an independent contractor but is instead an employee pursuant to Labor Code section 2775. (Complaint, ¶ 40.)

For purposes of the Labor Code, a person providing labor will be considered an employee rather than an independent contractor unless the hiring entity demonstrates: a) the person is free from the control and direction of the hiring entity in connection with the performance of the work, both under the contract and in fact; b) the person performs work outside the usual course of the hiring entity's business; and c) the person is customarily engaged in an independently established occupation of the same nature as that involved in the work performed. (Lab. Code, § 2775, subd. (b)(1)(A)-(C).) The California Supreme Court has determined that the burden of proof rests with the hiring entity to establish that a worker is an independent contractor by establishing each of the three factors. (*Dynamex Operations W. v. Superior Court* (2018) 4 Cal.5th 903, 956-957.) Failure to satisfy any one of the three factors "establishes that the worker should be treated as an employee[.]" (*Id.* at p. 963.)

In this case, Defendants fail to meet this burden as they have not opposed the Motion. Accordingly, for purposes of this Motion the Court deems Plaintiff to be an employee rather than an independent contractor. The Court next addresses the alleged Labor Code violations.

Plaintiff alleges the following violations: failure to pay wages (Lab. Code, § 204); failure to timely pay wages (Lab. Code, § 210); failure to furnish an itemized wage statement in writing (Lab. Code, § 226); and failure to reimburse for necessary business expenses (Lab. Code, § 2802). (Complaint, ¶¶ 41-45.)

In support of her Motion regarding the Third Cause of Action for Violation of Labor

Code Sections 204, 210, 226, and 2802, Plaintiff proffers the following evidence:

1. Defendants failed to pay Plaintiff at least once a month and failed to timely pay Plaintiff. (UMFs 25, 26 [Exs. 1-4].)

2. Defendants never provided Plaintiff an itemized wage statement during the three months she was employed by Defendant. (UMF 28 [Bichko Decl., ¶ 12].)

3. Defendant never reimbursed Plaintiff for necessary business expenses incurred while performing her job duties. (UMF 30 [Defendant's Answer, ¶ 6; Bichko Decl., ¶¶ 3, 4, 12].)

Based on the foregoing, Plaintiff meets her initial burden of production demonstrating that Defendants violated these Labor Code sections. And as Defendants have failed to oppose the Motion, Defendants have not met their burden of raising a triable issue of material fact.

Accordingly, Plaintiff's Motion for Summary Adjudication of the Third Cause of Action for Violation of Labor Code Sections 204, 210, 226, and 2802 is GRANTED in favor of Plaintiff and against Defendants.

V. Analysis of the Motion for the Fourth Cause of Action for Violation of Business and Professions Code Section 17200 *et seq.*

Plaintiff's Fourth Cause of Action alleges that Defendants violated Business and Professions Code section 17200 et seq. by intentionally misclassifying Plaintiff as an independent contractor, failing to pay her wages, failing to reimburse her, and intentionally inducing Plaintiff to provide services with no intent to compensate her. (Complaint, ¶ 48.)

"Business and Professions Code section 17200 et seq. prohibits unfair competition, including unlawful, unfair, and fraudulent business acts. The UCL covers a wide range of conduct. It embraces anything that can properly be called a business practice and that at the same time is forbidden by law." (*Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1143.)

Here, Plaintiff's Motion focuses on the unlawful prong. She proffers evidence that Defendant failed to appropriately compensate her in violation of multiple Labor Code sections. (UMF 32 [Exs. 1-4, Bichko Decl., ¶¶ 3, 4, 12].) Accordingly, Plaintiff has met her initial burden of production. Defendants failed to oppose the Motion and therefore have not met their burden.

Accordingly, Plaintiff's Motion for Summary Adjudication of the Fourth Cause of Action for Violation of Business and Professions Code section 17200 *et seq.* is GRANTED in favor of Plaintiff and against Defendants.

Conclusion and Order

Based on the findings and rulings set forth above, the Court **GRANTS IN PART** Plaintiff's Motion for Summary Adjudication as follows:

1. Plaintiff's Motion for Summary Adjudication of the First Cause of Action for Breach of Contract is **GRANTED** in favor of Plaintiff and against Defendants;

2. Plaintiff's Motion for Summary Adjudication of the Third Cause of Action for Violation of Labor Code Sections 204, 210, 226, and 2802 is **GRANTED** in favor of Plaintiff and against Defendants; and

3. Plaintiff's Motion for Summary Adjudication of the Fourth Cause of Action for Violation of Business and Professions Code section 17200 et seq. is GRANTED in favor of Plaintiff and against Defendants.

But the Court **DENIES** Plaintiff's Motion for Summary Adjudication of the Second Cause of Action for Promissory Fraud.

As the Court **DENIES** Plaintiff's Motion for Summary Adjudication of the Second Cause of Action, the Court also **DENIES** Plaintiff's Motion for Summary Judgment of the entire civil action.

SO ORDERED.

Date: June 12, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

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Line 9

Line 10

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Line 12

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